

Control Number: 2025-02**Justification Review Document**

Description of Acquisition: The Defense Contract Management Agency (DCMA) is requesting Bi-Annual five (5) day Understanding Defense Industry Management Courses at the University of North Carolina Kenan-Flagler Business School for Executive Development located at 130 Dubose Home Lane, Chapel Hill, NC 27517.

Statutory Authority: 41 U.S.C. 1901, as prescribed in FAR 13.501(a), Sole Source (including Brand Name)

Estimated Contract Amount:

Base year	May 1, 2025 – March 31, 2026
Option Yr One	April 1, 2026 – March 31, 2027
Option Yr Two	April 1, 2027 – March 31, 2028
Option Yr Three	April 1, 2028 – March 31, 2029
Option Yr Four	April 1, 2029 – March 31, 2030



Overall Total Contract Amount: \$2,673,476.00

Period of Performance: The course is offered two times a year (April and August) for a period of one week each. The period of performance will be a one-year base period plus four one-year option periods, from May 1, 2025 – March 31, 2030.

Prepared By: [Redacted] Digitally signed by MANEFAIGA.CHARLENE.M
Contracting Officer [Redacted] MARIE. [Redacted] 4/14/25

Charlene Maneafaiga (Signature and Date)

Required Review Signatures: The below have reviewed this J&A and find the justification adequate to support other than full and open competition.

1. Contracting Officer	[Redacted] Digitally signed by MANEFAIGA.CHARLENE.MARIE. [Redacted] 4/14/25	Date
	Charlene M. Maneafaiga	
2. Procurement Center Director	[Redacted] Digitally signed by FANIEL.DEWEY.R [Redacted] 4/15/25	Date
	Dewey R. Faniel	
3. Legal Counsel:	[Redacted] Digitally signed by KEY.JAMES.DANIEL. [Redacted] 4/14/25	Date
	James D. Key	
4. Policy	[Redacted] Digitally signed by TOMBERLIN.DAISY.LEE. [Redacted] 4/15/25	Date
Procurement Analyst:	Lee Tomberlin	
5. Procurement Division	[Redacted] Digitally signed by FANIEL.DEWEY.R [Redacted] 4/15/25	Date
Director:	Dewey R. Faniel	

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Justification and Approval (J&A) For Other Than Full and Open Competition

1. **Contracting Office:** Defense Contract Management Agency (DCMA), Procurement Center, Fort Gregg-Adams, Virginia.
2. **Type of Contract Action:** This will be a new, stand-alone Firm-Fixed Price (FFP) contract to the University of North Carolina Kenan-Flagler Business School for Executive Development (UNC), utilizing FY25 O&M Direct Funds.
3. **Description of Supplies/Services:** The Understanding Defense Industry (UDI) Management Course is an immersive experience specifically designed to educate Senior DCMA leaders on understanding defense industry mindset, motivations, behaviors and provide frameworks, toolkits and thought leadership that are immediately applicable to leadership functions. It is a mission-critical investment in national security, ensuring that our warfighters have the resources and capabilities they need to prevail.
4. **Authority Cited:** 41 U.S.C. 1901, as prescribed in FAR 13.501(a), Sole Source
5. **Reason for Authority Cited:** The purpose of this document is to provide a Justification for sole source procurement action to the University of North Carolina (UNC) Kenan-Flagler Business School for Executive Development. The intensive five-day UDI program is a proven course that has been provided to over 600 military leaders since 2011 to include the Assistant Secretary of the Army, Acquisition, Logistics and Technology (ASAALT) and Defense Logistics Agency, and the Marine Corps Systems Command customized curriculums. The major premise is that the playing field between defense industry and the federal government acquisition workforce is not level and is tilted in favor of defense industry. This program gives tools to leverage knowledge of insider government expertise and maintain a competitive advantage. It also equips senior defense acquisition professionals with a sophisticated, customized understanding of the defense industry and effective procurement strategies.

The UDI program examines finance principles that influence defense markets, defense industry priorities, negotiation skills, defense company behavior and analysis, Capitol Hill perspective of DCMA contracting challenges, small business concepts and deep analysis, RFP development and cost savings/innovative approaches using multiple real-life scenarios and guest speakers to align with the DCMA's mission. Participants gain actionable insights into corporate behavior, market dynamics, and negotiation tactics through expert lectures, panel discussions, case studies, and networking opportunities. UDI provides a hands-on experience; industry speakers; case studies;

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career support; practical exercises and reading assignments for 30 students and up to three clients/observers.

This program also bridges this critical defense industry versus. federal government acquisition gap by providing:

- a. **Corporate Strategy Foresight:** Anticipating and countering contractor tactics, risk tolerance, and financial strategies through a deep understanding of their behavior.
 - b. **Financial Acumen:** Equipping negotiators with the skills to dissect complex financial statements, identify potential red flags, and accurately assess contractor financial health.
 - c. **Strategic Negotiation Skills:** Providing actionable techniques to leverage publicly available financial data and align negotiation strategies with contractor incentives, ensuring optimal outcomes for the government and, ultimately, the warfighter.
6. **Efforts to Obtain Competition:** A synopsis was posted to SAM.gov on March 7, 2025, technical capability statements were solicited for consideration. Two vendors submitted business information but no detailed information on providing the course content the Government needs. As future requirements evolve, DCMA will continually monitor and perform market research to determine if comparable services have been introduced to the market and are available at other universities. No other sources were found to offer a comparable program that could be customized to the same extent as the UNC Kenan-Flagler's Business School for Executive Development.
7. **Fair and Reasonable Cost Determination:** The price will be determined fair and reasonable in accordance with price analysis techniques identified in FAR 13.106-3(a)(2), the contracting officer may base the analysis on (i) market research; (iii) current price lists; (iv) comparison with similar items in a related industry; (vi) comparison to an independent Government estimate; or (vii) any other reasonable basis. A memorandum detailing the fair and reasonable price determination will be included in the contract documentation.

The program's impact is undeniable. In one instance, a negotiation team armed with program insights identified and prevented a \$35 million profit inflation attempt by a contractor. This success story underscores the program's potential to generate substantial cost savings, directly translating into increased funding for vital warfighter capabilities.

8. **Market Research Conducted:** Mandatory sources were checked to determine if there were additional sources capable of providing the required training, resulting in no positive responses. The Contracting Officer conducted independent market research and concurred with the Requiring Activity's market research.

A SAM Search was conducted on the proposed contractor The University of North Carolina [UEI- E2BMXYHMFN58] with no negative results.

9. **Other Supporting Facts:** N/A.

10. **Sources:** University of North Carolina At Chapel Hill DBA Kenan Flagler Business School

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Source Selection Sensitive Information-See FAR 2.101 and 3.104

11. Actions Taken to Remove Barriers: Currently, this program's uniquely tailored curriculum, designed in consultation with defense acquisition experts, addresses a critical gap in existing training. No other program offers the same level of specialized content, real-world applicability, and a proven track record of generating cost savings and enhancing warfighter capability. It is the intent of the Contracting Officer to conduct additional market research, to include the Performance Work Statement in a SAM.gov sources sought post-award, when time allows, for future procurements of this requirement and further testing the market.

Justification Approval

Based on the foregoing information, I hereby approve the procurement of the Understanding Defense Insights at the University of North Carolina, located at 130 Dubose Home Lane, Chapel Hill, NC 27517 on an other than full and open competition basis, pursuant to the authority of FAR 13.501(a), Sole Source (including Brand Name), provided that funds are available, or will be available and that the services and products herein described have been authorized for acquisition.

APPROVED:

MCMAHON.PATRI
CIA.L. [REDACTED] Digitally signed by [REDACTED]
Date: 2025.04.17 16:42:20 -04'00'

Patricia L. McMahon
Competition Advocate

Technical/Requirements Certification

I certify that the supporting data under my cognizance, which are included within this justification, are accurate and complete to the best of my knowledge and belief.

BOWERS.YVETTE.R
USSELL [REDACTED] Digitally signed by [REDACTED]
Date: 2025.04.15 09:15:25 -04'00'

Yvette R. Bowers
Supervisor Programs Branch Policy & Programs
Division

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